

An Act

ENROLLED HOUSE
BILL NO. 2166

By: Pfeiffer of the House

and

Coleman of the Senate

An Act relating to definitions and general provisions; amending 25 O.S. 2021, Section 106, which relates to newspapers; defining term; prescribing requirements; imposing duties upon periodical and nonperiodical newspapers; imposing restrictions based on geographical location; providing publication provisions; and relating to the continuity of publication and the failure to maintain continuous and consecutive publication.

SUBJECT: Definitions and general provisions

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 25 O.S. 2021, Section 106, is amended to read as follows:

Section 106. No legal notice, advertisement, or publication of any kind required or provided for by the laws of this state to be published in a newspaper of general circulation shall have force or effect unless published in a legal newspaper of the county in this state. Legal newspapers shall be either:

A. PERIODICAL PERMIT NEWSPAPER: A legal newspaper of the county is any newspaper of general circulation which, during a period of one hundred four (104) consecutive weeks immediately prior to the first publication of such notice, advertisement, or publication:

1. ~~has~~ Has maintained a paid general subscription circulation in the county; and

2. ~~has~~ Has been admitted to the United States mails as paid ~~second-class~~ general periodical mail matter; and

3. ~~has~~ Has been continuously and uninterruptedly published in the county.

B. NONPERIODICAL PERMIT NEWSPAPER: A legal newspaper of the county is any newspaper of general circulation which, during a period of one hundred four (104) consecutive weeks immediately prior to the first publication of such notice, advertisement, or publication:

1. Has published a printed issue at least once per week;

2. Continuously offers paid subscriptions to the general public and maintains a minimum of two hundred paid print subscriptions to individual verified subscribers, and delivers such subscriptions by verified mail or carrier delivery to paid individual subscribers. The cost of a paid subscription shall exceed a nominal fee including the cost of printing and distribution;

3. Has averaged a minimum of twenty-five percent (25%) news content over the preceding twelve-month period, and news content shall be content generally found in local news publications, such as general local news relevant to the area the notice is intended to serve, reports of local events and persons, local government proceedings, feature stories, graphics, photographs, letters to the editor or editorial pages. No nonperiodical newspaper shall knowingly carry advertisements which are prohibited by state or federal law;

4. Has maintained a known office of publication in the county where the business of the publication can be transacted with the public and where the public can personally interact or meet with local staff of the publication;

5. Has published in the newspaper an annual statement of ownership, management, and circulation in the issue dated nearest October 1 of each year, which shall contain the same information as the United States Postal Form 3526;

6. Has conducted an independent audit by a firm recognized by the newspaper industry to verify accuracy of circulation, subscriptions, and content, to confirm the newspaper has met the

applicable requirements of this section. Such audit shall be conducted prior to attaining status as a legal newspaper, and annually each year thereafter. Each audit shall be available at no charge to any person upon written request within five (5) business days of the request, or alternatively shall be made available continuously on the newspaper website, if the newspaper has a website;

7. Has declared the county of publication which the newspaper shall serve when attaining status as a legal newspaper, and such county of publication cannot be moved from one county to another county after such declaration without meeting the requirements of this section again in full for one hundred four (104) consecutive weeks;

8. Prior to attaining status as a newspaper qualified to carry legal notices, the nonperiodical newspaper shall petition the district court in the jurisdiction in which the newspaper seeks to be authorized as a legal newspaper and provide evidence the newspaper has met the requirements required to be designated as a legal newspaper of general circulation in the county. Prior to filing the petition, the nonperiodical newspaper shall publish a notice of intent pursuant to this section, in a newspaper of general circulation in the county, or an adjoining county if no newspaper exists in the county. The court shall review the petition and determine whether the applicant has fully met the qualifications and publication time requirements of this section as applicable, and grant or deny authority for the nonperiodical newspaper to accept legal notice as qualified legal newspaper of general circulation of the county. The court may revoke such authority if the newspaper is determined by the court to have failed to continue to meet the qualifications of this section; and

9. Publish on the front page the newspaper title, and publish an identification box in easily read type located in the first five pages in each issue, which shall include the title of the newspaper, known office of publication address including street number and name, city, ZIP code, county of publication, telephone contact information, email address for the publication, a statement of frequency, information on how to subscribe to the newspaper, the date of publication and volume and issue number of each publication. The date, volume, and issue number may be omitted from the identification box if such information appears on the front page of the newspaper. The identification box may contain any other

material the publisher determines will inform the general public of the newspaper policies or deadlines.

C. All periodical permit and nonperiodical permit newspapers as defined in subsections A and B of this section also shall:

1. Register and maintain registration of the ownership of the newspaper with the Oklahoma Secretary of State;

2. Publish all legal notices on the newspaper website in a timely manner, if the newspaper maintains a website, in front of any paywall or paid access so the public may freely access the notices published. Notices posted on the publication website shall, at minimum, be maintained for public viewing for the time period the notice is required to be run in the printed newspaper;

3. When notice by publication in a newspaper is required by law, order of court, or other means, the newspaper publishing the notice shall in a timely manner, at no additional cost to the person or official desiring the publication, cause the notice to be placed on the statewide website established and maintained as a joint venture of a majority of Oklahoma newspapers qualified as legal newspapers under the laws of this state;

4. Shall publish a promotional ad in each issue in which public notices appear promoting notices in the local newspaper, on the local newspaper website, if any, and on the statewide website described in paragraph 3 of this subsection;

5. Archive printed issues containing legal notices for a minimum of three (3) years; and

6. Shall be independent of government and shall not be owned, controlled, funded, or subsidized by any political party, state agency, political subdivision, fraternal or religious organization, or other party which is not independent of government.

D. A legal newspaper of the county is qualified to be a legal newspaper in only one county in which the periodical permit newspaper original entry periodicals mail permit was applied for and held, or in the county in which the nonperiodical permit newspaper declared when beginning as a nonperiodical permit newspaper under subsection B of this section. Each legal newspaper must annually declare in the published statement of ownership, management and circulation on October 1 if they are publishing as a periodical

permit or nonperiodical permit newspaper for the succeeding year, as defined in this section, and shall continue to be authorized under that declaration for a period of one (1) year, and cannot change such declaration until October 1 each year.

E. If there is no legal newspaper in a county, then all legal notices, advertisements, or publications of any kind required or provided for by the laws of this state shall be published in a legal newspaper in an adjoining county of this state, which newspaper has general circulation in the county or political subdivision in which such notice is required. If there is no legal newspaper in a county, a newspaper can be established by meeting the provisions of this section after a period of fifty-two (52) consecutive and uninterrupted weeks in a twelve-month period.

F. Nothing in this section shall invalidate the publication of such legal notices, advertisements, or publications in a newspaper which has moved its place of publication from one location in the county to another location in the same county without breaking the continuity of its regular issues for the requisite length of time, or the name of which may have been changed when said change of location was made as permitted by United States postal laws and regulations or the laws of the State of Oklahoma.

G. Failure to issue or publish said newspaper for a period of ~~fourteen (14)~~ twenty-one (21) consecutive days, beginning the day after the last publication, due to fire, accident, natural disaster, national health emergency declared by the state or federal government or other unforeseen cause, or by reason of the pendency of mortgage foreclosure, attachment, execution, or other legal proceedings against the ~~type~~ equipment, presses, or other personal property used by the newspaper, shall not be deemed a failure to maintain continuous and consecutive publication as required by the provisions of this section, nor shall said failure invalidate the publication of a notice otherwise valid. Failure to issue or publish a newspaper qualified to publish legal notices, advertisements, or publications of any kind, for a period totaling not more than fourteen (14) consecutive days during a calendar year shall not be deemed a failure to maintain continuous and consecutive publication as required by the provisions of this section, nor shall said failure invalidate the publication of a notice otherwise valid.

H. A newspaper is permitted to publish fifty (50) of the preceding fifty-two (52) weeks over the immediately previous twelve-month period, and failure to issue or publish a newspaper under this

publication schedule shall not be deemed a failure to maintain continuous and consecutive publication as required by the provisions of this section, nor shall said failure invalidate the publication of a notice otherwise valid.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____